

VCU331406 Barraza, Arturo vs. FCA US LLC

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-07-30

Motion: Plaintiff's Motion for Monetary and Evidentiary Sanctions re: Initial Disclosures

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Re: Barraza, Arturo vs. FCA US LLC

Case No.: VCU331406

Date: July 30, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Plaintiff's Motion for Monetary and Evidentiary Sanctions re: Initial Disclosures

Tentative Ruling: To find the motion to compel disclosures moot; to deny the motion as to the requests for sanctions.

Facts

On February 10, 2026, Plaintiff filed this complaint alleging a single violation of Song Beverly Act as to breach of express warranty.

On March 30, 2026, Defendant FCA filed its answer.

On June 4, 2026, Plaintiff filed this motion seeking mandatory monetary sanctions in the sum of \$2,500.00 as to FCA's failure to provide initial disclosure and document production within 60 days from filing its answer pursuant to Code of Civil Procedure Sections 871.26, subd. (b) and (j)(1). Further, that FCA has opted into being governed by Code of Civil Procedure section 871.20, et. seq.

Further, Plaintiff seeks evidentiary sanctions defined by Code of Civil Procedure section 871.26, subdivision (j)(4), which states: "a court shall order that evidentiary sanctions attach precluding the manufacturer or defendant from introducing evidence at trial regarding whether the motor vehicle had a nonconformity that substantially impaired the use, value, or safety of the motor vehicle, or whether the motor vehicle was repaired to match the written warranty after a reasonable number of opportunities to do so."

On July 23, 2026, Plaintiff filed a notice of non-opposition.

On July 24, 2026, Defendant filed an untimely opposition, noting FCA served its disclosures on June 4, 2026, arguing that no prejudice has resulted, the failure to disclose was inadvertent and that the motion is moot.

Authority and Analysis

This mandatory disclosure law, enacted January 1, 2025 applies to "civil action[s] seeking restitution or replacement of a motor vehicle pursuant to Section 871.20." This Song Beverly action, therefore, is within the scope of this law.

"Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Code Civ. Proc., § 871.26, subd. (b).)

Subsection (h), applicable to Defendant Ford, requires:

(h) The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b):

- (1) Copy of or access to a version of the owner's manual for a motor vehicle of the same make, model, and year.
- (2) Any warranties issued in conjunction with the sale of the motor vehicle.
- (3) Sample brochures published for the motor vehicle.
- (4) The motor vehicle's original invoice, if any, to the selling dealer.
- (5) Sales or lease agreement, if the manufacturer is in possession.
- (6) Motor vehicle information reports, including build documentation, component information, and delivery details.
- (7) Entire warranty transaction history for the motor vehicle.
- (8) Listing of required field actions applicable to the motor vehicle.
- (9) Published technical service bulletins ("TSBs") for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.
- (10) Published information service bulletins ("ISBs") for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(11) Records relating to communications between the manufacturer or dealership and the owner or lessee of the motor vehicle, including those related to repair orders or claims involving the motor vehicle.

(12) Warranty policies and procedure manuals.

(13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle.

(14) If a pre-suit restitution or replacement request is made, all call recordings of pre-suit communications with the consumer available at the time of service of the complaint.

(15) If a pre-suit restitution or replacement request is made, the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to "Lemon Law" claims.

(16) If a pre-suit restitution or replacement request is made, any nonprivileged, prelitigation evaluation.

(17) Any warranty extensions or modifications issued by the manufacturer on the motor vehicle."

Here, Plaintiff represents that none of the requisite disclosures have been timely made.

As to monetary sanctions, subsection (j) states:

"(j) Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:

(1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b)...

(4) For a manufacturer's or defendant's repeated noncompliance with subdivision (b), (c), or (d), a court shall order that evidentiary sanctions attach precluding the manufacturer or defendant from introducing evidence at trial regarding whether the motor vehicle had a nonconformity that substantially impaired the use, value, or safety of the motor vehicle, or whether the motor vehicle was repaired to match the written warranty after a reasonable number of opportunities to do so."

Defendant acknowledges that it failed to provide initial disclosures within 60 days due to the fact that an attorney assumed the initial disclosure deadline was mutually extended. The Court finds sufficient good cause based on the declaration of counsel as to the unintentional failure to make the initial disclosures based on the extension provided to Plaintiff regarding Plaintiff's disclosures.

Further, the Court does not find the requisite repeated non-compliance under subsection (j)(4) necessary to impose evidentiary sanctions.

Therefore, the Court finds the motion moot and declines to award sanctions.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the

court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.